

**IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF NEW YORK**

MARLYN RUBERO

Plaintiffs,

v.

UNITED STATES POSTAL SERVICE,
AND ALONSO LEVENE

Defendants.

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CIVIL ACTION No.

(DEMAND FOR JURY TRIAL)

PLAINTIFF’S COMPLAINT AND JURY DEMAND

Plaintiff, MARLYN RUBERO (hereinafter referred to as, “Plaintiff”) file her Complaint against Defendants UNITED STATES POSTAL SERVICE and ALONSO LEVENE and states the following:

I.
NATURE OF THE CASE

This is an action for serious personal injuries arising from a motor vehicle accident that occurred on February 25, 2024, on Avenue J at or near its intersection with East 12th street, in Brooklyn, New York. Plaintiff was a lawful passenger inside a 2003 Lincoln bearing State of New York registration number HVN3372 and being operated by defendant Alonso Levene. They were traveling on Avenue J at or near its intersection with East 12th Street, when the vehicle wherein plaintiff was a passenger in was struck by a vehicle of the Defendant, The United States Postal Service driven by their agent, Timothy Guest. The collision was caused due to the negligent ownership, maintenance and operation of the vehicles involved and caused serious

injuries to the plaintiff.

II. PARTIES

1. Plaintiff, Marlyn Rubero is an individual currently residing in the State of New York, with an address located at 250 East 29th Street, Apt 3K, Brooklyn, NY 11226.

2. Defendant, UNITED STATES POSTAL SERVICE (“USPS”) is a Federal Constitutional Republic/Government with a principal place of business located at 950 Pennsylvania Avenue, NW, Washington DC 20530. The USPS National Tort Center is located at 1720 Market Street, Room 2400, St. Louis, MO 63155-9948

3. The UNITED STATES POSTAL SERVICE, by and through its agency was a valid owner of the governmental vehicle involved in this accident bearing number 6530739.

4. Defendant, Alonso Levene is an individual currently residing in the State of New York, with an address located at 513 East 40th Street, Brooklyn NY . Defendant Alonso Levene was the operator of the 2003 Lincoln, a vehicle the plaintiff was a lawful passenger in.

III. JURISDICTION AND VENUE

5. This action is brought under the United States Constitution, as applied to federal employees.

6. This action, as against United States Postal Service, arises under the Federal Tort Claims Act, 28 U.S.C. §§ 2671, et seq.

7. Plaintiff timely filed a Tort Claims Act administrative claim to the United States Customs Service. The United States Customs Service denied plaintiff’s administrative claim. All

conditions precedent to the Federal Tort Claims Act have been met.

8. This court has jurisdiction under and by virtue of 28 U.S.C. §§ 1331, 1343 and 1346(b).

9. Venue is founded in this jurisdiction based on 28 U.S.C. §§ 1391(e)(2) and 1402(b); as the acts complained of occurred in this district.

IV. FACTUAL BACKGROUND

10. On February 25, 2024, at approximately twelve twenty in the afternoon, Plaintiff was a lawful passenger inside a 2003 Lincoln bearing State of New York registration number HVN3372, traveling on Avenue J at or near its intersection with East 12th Street, Brooklyn, New York. Plaintiff was being driven by Defendant Alonso Levene. On that date, Timothy Guest, employed by the Defendant, UNITED STATES POSTAL SERVICE, and Defendant Alonso Levine negligently, recklessly and carelessly operated their vehicles causing their vehicles to collide causing serious injuries to the plaintiff Marlyn Rubero who was a passenger in the vehicle Defendant Alonzo Levene was operating.

11. As a result of the impact, Plaintiff was caused to sustain multiple serious injuries, including but not limited to her back, neck, and right shoulder, necessitating extensive treatment including surgery.

12. Plaintiff's injuries prevent her from engaging in their usual daily activities. They also suffered great pain of body and mind, and incurred expenses for medical attention and hospitalization.

13. That the aforesaid occurrence was caused wholly and solely by reason of the negligence, carelessness and recklessness of the Defendants in their ownership, maintenance and

operation of their vehicle, without any fault or negligence on the part of the Plaintiff contributing thereto.

14. That Defendants were negligent, careless and reckless in the ownership, operation, management, maintenance, supervision, use and control of their vehicle and the Defendants were otherwise negligent, careless and reckless under the circumstances then and their prevailing.

15. That by reason of the foregoing, Plaintiff, sustained severe and permanent personal injuries and was otherwise damaged.

V.
JURY DEMAND

16. Plaintiff hereby demands a jury trial.

VI.
PRAYER FOR RELIEF

WHEREFORE, Plaintiff, MARLYN RUBERO, requests judgment against Defendants, UNITED STATES POSTAL SERVICE, and ALONSO LEVENE, in the sum of five million (\$5,000,000.00) Dollars and costs.

Respectfully submitted,


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